4. He/she must possess other qualifications prescribed by Parliament.

Accordingly, the Parliament has laid down the following additional qualifications in the Representation of People Act (1951):

1. A person to be elected to the legislative council must be an elector for an assembly constituency in the concerned state and to be qualified for the governor's nomination, he/she must be a resident in the concerned state.

2. A person to be elected to the legislative assembly must be an elector for an assembly constituency in the concerned state.

3. He/she must be a member of a scheduled caste or scheduled tribe if he/she wants to contest a seat reserved for them. However, a member of scheduled castes or scheduled tribes can also contest a seat not reserved for them.

2. Disqualifications

Under the Constitution, a person shall be disqualified for being chosen as and for being a member of the legislative assembly or legislative council of a state:

1. if he/she holds any office of profit under the Union or state government (except that of a minister or any other office exempted by state legislature[5]),

2. if he/she is of unsound mind and stands so declared by a court,

3. if he/she is an undischarged insolvent,

4. if he/she is not a citizen of India or has voluntarily acquired the citizenship of a foreign state or is under any acknowledgement of allegiance to a foreign state, and

5. if he/she is so disqualified under any law made by Parliament.

Accordingly, the Parliament has prescribed a number of additional disqualifications in the Representation of People Act (1951). These are similar to those for Parliament. These are mentioned here:

1. He/she must not have been found guilty of certain electoral offences or corrupt practices in the elections.

2. He/she must not have been convicted for any offence resulting in imprisonment for two or more years. But, the detention of a person under a preventive detention law is not a disqualification.

3. He/she must not have failed to lodge an account of his/her election expenses within the time.

4. He/she must not have any interest in government contracts, works or services.

5. He/she must not be a director or managing agent nor hold an office of profit in a corporation in which the government has at least 25 per cent share.

6. He/she must not have been dismissed from government service for corruption or disloyalty to the state.